

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2022-1963

Hearing Date: **January 16, 2026** **Department Eight** **9:00 a.m.**

On the Court’s own motion, defendant Ashok Patel’s motion for a protective order is **CONTINUED** to January 16, 2026, **at 1:30 p.m.** in Department Eight.

Defendant’s motion for a protective order is **GRANTED**. (Code Civ. Proc., §§ 2019.020, subd. (b), 2030.090.) The Court finds that, in the interest of judicial economy, the parties should not engage in the discovery process until the pleadings are settled. (Code Civ. Proc., § 2019.020, subd. (b); Dean decl., ¶¶ 24-29; Mehta decl., ¶¶ 3-4 & 8-9; Murray decl., ¶¶ 4-9.) Therefore, all discovery is **STAYED** until defendants Ashok Patel, Michael Olivas, David Fischbach, and Ken Patel are required to answer plaintiff’s complaint or further order by this Court.

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.090, subd. (d).) Defendant did not cite legal authority to support his request for monetary sanctions. (Dean decl., ¶¶ 30-34; see *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74.) Further, defendant’s notice of motion did not “identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2030.090, subd. (d).) Defendant did not unsuccessfully make this motion for a protective order. (*Ibid.*)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV-2023-0312

Hearing Date: **January 16, 2026** **Department Eight** **9:00 a.m.**

On the Court’s own motion, plaintiff Xinyao Zhou’s motion to compel compliance, compel further responses, issue preservation order, and request for monetary sanctions is **CONTINUED** to January 16, 2026, **at 1:30 p.m.** in Department Eight.

Defendant Hotel Winters, LLC’s objections to plaintiff’s notice of errata are **SUSTAINED IN PART**. Although plaintiff did not sign the notice of motion, she signed the motion. (See Motion, p. 18; Code Civ. Proc., § 128.7, subd. (a).) To the extent that she improperly failed to sign the notice of motion, the Court finds that this was a clerical error, capable of being corrected by a notice of errata. (See *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 834; *Flores v. Nature’s Best Distribution, LLC* (2016) 7 Cal.App.5th 1, 6.) However, as to the separate statement attached to the notice of errata, this is a substantive change to plaintiff’s motion. (Cal. Rules of Court, rule 3.1345(a) [“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement”].) Therefore, the Court does not consider the separate statement filed with plaintiff’s notice of errata. While defendant requests attorney’s fees under Code of Civil Procedure section 2023.010 and 128.7, a request for sanctions under section 128.7 must “be made separately from other motions or requests.” (Code Civ. Proc., § 128.7, subd. (c)(1).) Further, as to section 2023.010, defendant does not identify which subdivision of this statute plaintiff violated by filing an improper notice of errata. (See Code Civ. Proc., § 2023.010.)

Defendant’s opposition to and request to strike plaintiff’s supplemental declaration is **DENIED**. “The general rule of motion practice...is that new evidence is not permitted with reply papers.” (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) However, plaintiff’s supplemental declaration and the exhibit attached thereto did not address “substantive issues in the first instance but only filled gaps in the evidence created by the...opposition.” (*Id.* at p. 1538.)

Plaintiff’s motion to compel compliance, compel further responses, issue preservation order, and request for monetary sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, 2031.320.) First, as to plaintiff’s request to compel compliance, defendant did not fail to permit the “inspection, copying, testing, or sampling in accordance with [their] statement of compliance.” (Code Civ. Proc., § 2031.320, subd. (a); Zhou decl., ¶ 4, Exhibit C.) In the identified verified responses, defendant stated that when the individual who has access to responsive information is medically able, defendant will search and produce non-privilege responsive documents in its possession, custody, or control. (Zhou decl., ¶ 4, Exhibit C, RFP nos. 1-4, 6, & 10-11.) Plaintiff has not shown that defendant has not complied with this statement. (Code Civ. Proc., § 2031.320, subd. (a); see Mehta decl., ¶ 3.)